

CV-25-003684 KUMAR, PARMILA vs AGUILAR BROTHERS CONSTRUCTION INC – a)Plaintiff’s Motion to Compel Defendant Ulysses Aguilar’s Responses to Plaintiff’s Request for Production and for Monetary Sanctions - GRANTED, and unopposed; b) Plaintiff’s Motion to Compel Defendant Enrique Aguilar’s Responses to Plaintiff’s Special Interrogatories, Set One and for Monetary Sanctions – GRANTED, and unopposed; c) Plaintiff’s Motion to Compel Defendant Enrique Aguilar’s Responses to Plaintiff’s Request for Production and for Monetary Sanctions - GRANTED, and unopposed; d) Plaintiff’s Motion to Compel Defendant Aguilar Brothers Construction, Inc.’s Responses to Plaintiff’s Special Interrogatories and for Monetary Sanctions – GRANTED, and unopposed; e) Plaintiff’s Motion to Compel Defendant Aguilar Brothers Construction, Inc.’s Responses to Plaintiff’s Request for Production and for Monetary Sanctions - GRANTED, and unopposed; f) Plaintiff’s Motion to Compel Defendant American Contractors Indemnity Company’s Responses to Plaintiff’s Special Interrogatories and for Monetary Sanctions - HEARING REQUIRED; g) Plaintiff’s Motion to Compel Defendant American Contractors Indemnity Company’s Responses to Plaintiff’s Request for Production and for Monetary Sanctions – HEARING REQUIRED; h) Defendant American Contractors Motion for Leave to Withdraw or Amend Admissions (Code Civ. Proc. § 2033.300) – GRANTED with conditions.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a) The Court finds that Defendant Ulysses Aguilar has entirely failed to respond to the subject discovery and all objections have been waived. (Code Civ. Proc. § 2031.300(a).) Therefore, Plaintiff is entitled to an order compelling Defendant to provide verified responses, without objection, to Plaintiff’s Request for Production of Documents within 14 days. (Code Civ. Proc. § 2031.300(b).) The Court further finds that Plaintiff is entitled to an award of monetary sanctions in connection with this motion. (Code Civ. Proc. §§ 2031.300(c), 2023.010 et seq.) Therefore, monetary sanctions in the amount of \$435 are awarded against Defendant Ulysses Aguilar, payable to Plaintiff’s counsel. b) The Court finds that Defendant Enrique Aguilar has entirely failed to respond to the subject discovery and all objections have been waived. (Code Civ. Proc. § 2030.290(a).) Therefore, Plaintiff is entitled to an order compelling Defendant to provide verified responses, without objection, to Plaintiff’s Special Interrogatories, Set One, within 14 days. (Code Civ. Proc. § 2030.290(b).) The Court further finds that Plaintiff is entitled to an award of monetary sanctions in connection with this motion. (Code Civ. Proc. §§ 2030.290(c), 2023.010 et seq.) Therefore, monetary sanctions in the amount of \$435 are awarded against Defendant Enrique Aguilar, payable to Plaintiff’s counsel. c) The Court finds that Defendant Enrique Aguilar has entirely failed to respond to the subject discovery and all objections have been waived. (Code Civ. Proc. § 2031.300(a).) Therefore, Plaintiff is entitled to an order compelling Defendant to provide verified responses, without objection, to Plaintiff’s Request for Production of Documents, Set One, within 14 days. (Code Civ. Proc. § 2031.300(b).) The Court further finds that Plaintiff is entitled to an award of monetary sanctions in connection with this motion. (Code Civ. Proc. §§ 2031.300(c), 2023.010 et seq.) Therefore, monetary sanctions in the amount of \$435 are awarded against Defendant Enrique Aguilar, payable to Plaintiff’s

counsel. d) The Court finds that Defendant Aguilar Brothers Construction, Inc., has entirely failed to respond to the subject discovery and all objections have been waived. (Code Civ. Proc. § 2030.290(a).) Therefore, Plaintiff is entitled to an order compelling Defendant to provide verified responses, without objection, to Plaintiff's Special Interrogatories, Set One, within 14 days. (Code Civ. Proc. § 2030.290(b).) The Court further finds that Plaintiff is entitled to an award of monetary sanctions in connection with this motion. (Code Civ. Proc. §§ 2030.290(c), 2023.010 et seq.) Therefore, monetary sanctions in the amount of \$435 are awarded against Defendant Aguilar Brothers Construction, Inc., payable to Plaintiff's counsel. e) The Court finds that Defendant Aguilar Brothers Construction, Inc. has entirely failed to respond to the subject discovery and all objections have been waived. (Code Civ. Proc. § 2031.300(a).) Therefore, Plaintiff is entitled to an order compelling Defendant to provide verified responses, without objection, to Plaintiff's Request for Production of Documents, Set One, within 14 days. (Code Civ. Proc. § 2031.300(b).) The Court further finds that Plaintiff is entitled to an award of monetary sanctions in connection with this motion. (Code Civ. Proc. §§ 2031.300(c), 2023.010 et seq.) Therefore, monetary sanctions in the amount of \$435 are awarded against Defendant Aguilar Brothers Construction, Inc. payable to Plaintiff's counsel. f) The parties shall appear to inform the Court of the status of the promised responses and to address the issue of sanctions. g) The parties shall appear to inform the Court of the status of the promised responses and to address the issue of sanctions. h) Plaintiff correctly observes that there was no proposed response to the RFA's and ACIC's "prompt commitment to cure," has not included any showing of excusable neglect by the attorney and ACIC has not actually made efforts to cure. Nonetheless, under *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, the Court must affirmatively find that ACIC's conduct was inexcusable, which under these circumstances the Court cannot do. Further Code Civ. Proc. section 2033.300 controls. On the other hand, ACIC's view of "prompt" and the Court's differ. This motion is granted conditionally under the following terms: 1. Responses shall be provided by 4 p.m. August 13, 2026. 2. ACIC shall pay \$720 to Plaintiff's counsel for a portion of the fees and costs for this motion.

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